The examination is being carried out on the **following application documents**

Description, Pages

1-23 filed with entry into the regional phase before the EPO

Claims, Numbers

1-13 filed with entry into the regional phase before the EPO

Drawings, Sheets

1/9-9/9 as published

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1. Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 2016/127690 A1 (KAEHLER ADRIAN [US] ET AL) 5 May 2016 (2016-05-05)

D2 EP 3 318 945 A2 (ROCKWELL AUTOMATION TECH INC [US]) 9 May 2018 (2018-05-09)

D3 US 2019/266803 A1 (3DQR GMBH [DE]) 29 August 2019 (2019-08-29)

D4 US 2013/094780 A1 (TANG FENG [US] ET AL) 18 April 2013 (2013-04-18)

2. Claim 1

2.2 The application does not meet the requirements of Article 84 EPC, because claim 1 is not clear.

It is not clear against what the "deviation" is detected.

2.3 The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claim 1 does not involve an inventive step within the meaning of Article 56 EPC.

Document D1 discloses a computer implemented method, comprising: obtaining a previously captured image data of a virtual tour of a location, receiving real-time image data of a target object located within a field of view area of a camera, which target object is located in the same location wherein the previously captured image data was captured, overlaying the real-time image data of the target object on a corresponding area of the target object in a virtual tour view for forming a mixed image virtual tour data (D1, paragraphs 3, 22).

The subject-matter of claim 1 differs in that it is further claimed

1) receiving real-time acoustic data captured by an audio sensor in the location, analysing the received acoustic data for detecting a malfunction, playing the real-time acoustic data in an area of the mixed image virtual tour view corresponding to the location of the audio sensor or its surroundings in the location if the malfunction is detected for further augmenting the mixed image virtual tour by real-time acoustic data.

2) analysing the real-time image data for detecting a deviation, and the overlay is performed only if the deviation is detected.

It is noted that the above differences solve two different technical problems

The first difference solves the problem of improving the virtual tour in order to render it more realistic

The second solves the problem of how reducing the computational load (and the transmission band) of the system due to the overlay of the real time images.

Due to this, the two features do not have a synergetic effect and render the claim a mere juxtaposition of features that do not concur to solve the same technical problem (Guidelines G-VII.7).

For this reasons the due differences will be examined separately

1) The features of the first difference have already been employed for the same purpose in a similar method (see D2, paragraphs 107, 109, fig. 14A). It would be obvious to the person skilled in the art, namely when the same result is to be achieved, to apply these features with corresponding effect to the method according to D1, thereby arriving at a method according to claim 1. The subject-matter of claim 1 does not therefore involve an inventive step (Articles 52(1) and 56 EPC).

The above feature is also anticipated by D3 (see D3, paragraph 6, paragraph 10; considering that the type of acoustic data is not technical and it is merely a business decision which kind of data it should contain) .

2) The second difference is generally known and employed for the same purpose in a similar method disclosed in D4 (D4, paragraphs 24, 53). For this reason, It would be obvious to the person skilled in the art, namely when the same result is to be achieved, to apply these features with corresponding effect to the method according to D1, thereby arriving at a method according to claim 1. The subject-matter of claim 1 does not therefore involve an inventive step (Articles 52(1) and 56 EPC).

3. Claims 9 and 13

Claims 9 and 13 discloses a system and a computer program corresponding to the subject-matter of claim 1, hence all the objections raised to claim 1 are also applicable to claims 9 and 13.

4. Dependent claims

4.1 Claims 2 and 3

The subject-matter of claims 2 and 3 is disclosed in D1, the above cited passages.

It is further noted that the feature, in claim 3, "the image data is taken by a person" is not technical.

4.2 Claim 4

The application does not meet the requirements of Article 84 EPC, because claim 4 is not clear.

It is not clear what is a "ready-constructed virtual tour" and which features differentiate it from the previously captured image data.

4.3 Claim 5

The application does not meet the requirements of Article 84 EPC, because claim 5 is not clear.

It is not clear against what the "deviation" is detected and which is its difference with the deviation of claim 1.

4.4 Claim 6

The subject-matter of claim 6 is anticipated by D1 (the passages cited for claim 1).

4.5 Claim 7

The subject-matter of claim 6 is anticipated by D1 (fig. 2, paragraphs 14, 18).

4.6 Claim 8

Displaying the same image at different time points is generally known (it is sufficient to store the previous images), see for example "google maps / street view" and therefore the claimed feature is merely a known implementation that the skilled person would apply if the circumstances make it desirable.

4.7 The objections raised to the method claims are applicable to the corresponding system claims.

5. In the following section, changes required in the application are noted:

5.1 To meet the requirements of Rule 42(1)(b) EPC, the documents D1-D4 should be identified in the description and the relevant background art disclosed therein should be briefly discussed.

5.2 The features of the new claims should be provided with reference signs placed in parentheses to increase the intelligibility of the claims (Rule 43(7) EPC). This applies to both the preamble and characterising portion (see Guidelines F-IV, 4.19).

5.3 The Applicants should indicate in the letter of reply the difference of the subject-matter of the new claims vis-à-vis the cited documents D1, D2, D3 and D4 and the significance thereof.

5.4 The application must be brought into conformity with any new claims to be filed; care should be taken during revision, especially of the introductory portion including any statements of problem or advantage, not to add subject-matter which extends beyond the content of the application as originally filed, Art. 123(2) EPC.

5.5 In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC and meet the requirements of Rule 137(4) EPC, the Applicants are requested to clearly identify the amendments carried out and to indicate the passages of the application as filed on which these amendments are based.

5.6 The description should be amended to fulfil the following requirements:

- The technical field of the invention (Rule 42(1)(a) EPC; Guidelines F-II.4.2) must correspond to the amended set of claims.
- The summary of the invention (Rule 42(1)(c) EPC; Guidelines F-II.4.5) must correspond to the amended set of claims. Where appropriate, statements such as “The invention is set out in the appended set of claims“ or “The invention is as defined in claim X“ may be used instead of repeating the claims verbatim.
- **Embodiments which are no longer covered by the claims must be deleted**, unless they can reasonably be considered to be useful for highlighting specific aspects of the amended subject-matter. If this is the case, they must be clearly marked as not being part of the present invention (T 1808/06 and Guidelines F-IV, 4.3) :
    - Any combinations of features which do not fall under the scope of the amended independent claims must be clearly marked as not being part of the present invention. For example, if an amended claim comprises features

[**A**], [**B**] and [**C**] and the description refers only to [**B+C**] as an embodiment of the invention. That passage in the description must be marked as not being part of the invention.

- Statements such as “The following examples/aspects/embodiments X, Y, Z are not according to the invention and are present for illustration purposes only” may be used at the start of the description or in the list of figures.

- The technical features of the independent claims may not be presented as optional in the description. Where they precede a feature of an independent claim, terms such as “for example“, “may“, “can”, “exemplary“, “optionally“, “preferably“, “some embodiments”, other embodiments”, “further embodiments” and the like must be removed. (see also T1024/18)